DEPARTMENT OF MOTOR VEHICLES
LEGAL AFFAIRS DIVISION
Driver Safety Branch
4700 Broadway, 2nd Floor
Sacramento, California 95820
Email: ladsacramentodso@dmv.ca.gov
Telephone: (833) 543-7703 FAX: 916-227-2901

NOTICE OF RESPONSE TO REQUEST FOR DISCOVERY
PERSONAL STATEMENT

DSMS234
BRENDAN NGEHSI NGWANFORBI
1455 CAT TAIL DR
Stockton, CA 95204

DRIVER LICENSE NUMBER
F7953179

STATE OF CALIFORNIA
DEPARTMENT OF MOTOR VEHICLES

In the Matter of:	}	Driver License No.:F7953179
	}	Bk. or Arrest No.:RJ68845
BRENDAN NGWANFORBI	}	
	}	NOTICE OF RESPONSE TO REQUEST FOR DISCOVERY
	}	(Title 13, Division 1, Chapter 1, Article 2.4, §115.05
	}	of the California Code of Regulations [CCR])
Respondent	}	(§11507.6 Government Code)

STATEMENT OF FACTS AND DEFENSE

This document is provided in response to the Department of Motor Vehicles' request for discovery in the above-referenced matter. The following outlines the facts of the case, relevant legal challenges, and supporting case law demonstrating why the suspension of my driving privileges is unwarranted.

1. Welfare Check: Improper Escalation Without Probable Cause

On November 1, 2024, at approximately 12:30 a.m., I was safely parked on the shoulder of the freeway. My vehicle was off, the key not in the ignition, and I was asleep in the driver's seat. Officer Santiago Meza-Gonzalez approached my vehicle as part of a welfare check, a legitimate community caretaking function. However, this welfare check was escalated into a DUI investigation without specific, articulable facts or probable cause.

Relevant Case Law:

1. **Terry v. Ohio (1968) 392 U.S. 1:**
   - Officers must rely on specific, articulable facts to justify escalating an encounter into an investigation of criminal activity.
2. **Florida v. Royer (1983) 460 U.S. 491:**
   - Law enforcement may not extend the scope of an encounter beyond its initial purpose without clear and specific justification.

Challenges:

- The officer claimed to detect an odor of alcohol from the passenger side of the vehicle, a distance that makes such a determination highly implausible.
- The escalation lacked objective evidence of impairment, relying instead on subjective observations that failed to meet the legal threshold for reasonable suspicion.

2. Context of the Holiday Enforcement Period

This incident occurred immediately after Halloween, during a period of heightened law enforcement targeting alcohol-related offenses. While public safety initiatives during holidays are understandable, systemic pressures during such times can lead to overly aggressive enforcement and unnecessary escalation.

Relevant Case Law:

1. **People v. Reyes (2011) 195 Cal.App.4th 946:**
   - Law enforcement actions influenced by quotas or systemic pressures risk undermining the fairness of those actions.
2. **Brown v. Texas (1979) 443 U.S. 47:**
   - Detentions based on generalized motivations rather than specific facts violate constitutional protections.

Challenges:

- The timing of this encounter raises legitimate concerns about whether the officer's actions were influenced by misplaced motivations or systemic pressures associated with heightened holiday enforcement campaigns.
- This context supports reasonable skepticism about the fairness and motivations behind the investigation.

3. Lack of Probable Cause for the DUI Investigation

The officer cited observations such as "red and watery eyes," "slurred speech," and an odor of alcohol. However, these subjective observations were not corroborated by any objective evidence of impairment, such as erratic driving or unsafe behavior.

Relevant Case Law:

1. **Mercer v. DMV (1991) 53 Cal.3d 753:**
   - DUI investigations must be based on objective evidence of volitional movement or impairment.
2. **People v. Torres (2009) 173 Cal.App.4th 977:**
   - Physical symptoms like red eyes or slurred speech, without corroborating evidence of driving or impairment, are insufficient to justify a DUI arrest.

Challenges:

- The officer failed to account for alternative explanations for these observations, such as the effects of being abruptly awakened from sleep.
- There was no evidence of unsafe driving or recent operation of the vehicle to substantiate the officer's claims.

4. Ancillary Findings Are Fruit of the Poisonous Tree

Any subsequent observations or evidence, such as alleged poor performance on Field Sobriety Tests (FSTs), were obtained following an improper escalation and are inadmissible under the **fruit of the poisonous tree doctrine**.

Relevant Case Law:

1. **Wong Sun v. United States (1963) 371 U.S. 471:**
   - Evidence obtained as a result of unlawful police conduct must be excluded as fruit of the poisonous tree.
2. **People v. Medina (1972) 6 Cal.3d 484:**
   - Findings derived from an unlawful search or detention cannot retroactively justify the initial actions.

Challenges:

- The officer conducted FSTs on an uneven dirt shoulder, a condition acknowledged by Officer Melano as unsuitable for balance-based tests.
- The decision to obtain a blood sample following the escalation stems from this flawed investigation, rendering the evidence inadmissible.

5. Reasonableness of My Refusal

My refusal to submit to chemical testing was not an act of willful defiance but a reasonable and lawful response to an investigation that lacked legitimacy.

Relevant Case Law:

1. **McDonnell v. DMV (1975) 45 Cal.App.3d 653:**
   - A refusal must be clear, unequivocal, and intentional. Misunderstanding or distrust of the officer's motives, particularly in confusing or disorienting circumstances, can affect the validity of a refusal.

Challenges:

- My decision not to comply was a reasoned response to a procedurally improper investigation that failed to meet the legal threshold for probable cause.

6. Absence of Charges Highlights Weakness of the Case

Despite the officer's detailed report, no charges were filed against me, which underscores the insufficiency of the evidence and calls into question the legitimacy of the investigation.

Relevant Case Law:

1. **Brown v. Illinois (1975) 422 U.S. 590:**
   - Delays or failures in filing charges often indicate weaknesses in the evidence and undermine the validity of law enforcement actions.

Challenges:

- The prosecution's decision not to file charges demonstrates that the officer's claims and evidence were insufficient to meet even the minimal threshold for criminal proceedings.

Conclusion:

The escalation of this welfare check into a DUI investigation was procedurally improper, lacked probable cause, and resulted in actions that violated fundamental rights. The findings that followed

are inadmissible under established legal principles, and the absence of charges highlights the insufficiency of the evidence. My refusal to submit to chemical testing was a reasonable and lawful response to an unjustified and procedurally flawed investigation. Based on these facts and the supporting case law, the suspension of my license is unwarranted.

DATE	NAME OF RESPONDENT	SIGNATURE OF RESPONDENT
12/09/2024	BRENDAN NGEHSI NGWANFORBI	